

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

POLICY COMMITTEE
RECOMMENDATION

FOR ENGROSSED
SENATE BILL NO. 1716

By: Howard of the Senate

and

West (Josh) of the House

POLICY COMMITTEE RECOMMENDATION

[Security Breach Notification Act - class action
liability - exceptions - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1 of Enrolled Senate Bill
No. 546 of the 2nd Session of the 60th Oklahoma Legislature, is
amended to read as follows:

As used in this act:

1. "Affiliate" means a legal entity that controls, is
controlled by, or is under common control with another legal entity
or shares common branding with another legal entity. For purposes
of this paragraph, "control" or "controlled" means the:

- a. ownership of, or power to vote, more than fifty percent (50%) of the outstanding shares of any class of voting securities of a company,
- b. control in any manner over the election of a majority of the directors or of individuals exercising similar functions, or
- c. power to exercise controlling influence over the management of a company;

2. "Authenticate" means to verify through reasonable means that the consumer who is entitled to exercise the consumer's rights under this act is the same consumer exercising such consumer rights with respect to the personal data at issue;

3. "Biometric data" means data generated by automatic measurements of an individual's biological characteristics such as a fingerprint, voiceprint, eye retina or iris, or other unique biological pattern or characteristic that are used to identify a specific individual. The term does not include a physical or digital photograph, a video or audio recording, or data generated from a physical or digital photograph or a video or audio recording unless such data is generated to identify a specific individual. The term does not include information collected, used, or stored for health care treatment, payment, or operations under the Health Insurance Portability and Accountability Act of 1996, 42 U.S.C., Section 1320d et seq.;

1 4. "Business associate" has the meaning assigned to the term
2 under the Health Insurance Portability and Accountability Act of
3 1996, 42 U.S.C., Section 1320d et seq. or any regulation adopted
4 thereunder;

5 5. "Child" means an individual younger than thirteen (13) years
6 of age;

7 6. "Children's Online Privacy Protection Act of 1998" means 15
8 U.S.C., Section 6501 et seq. and includes the regulations, rules,
9 guidance, and exemptions adopted pursuant to the act and any
10 subsequent amendments;

11 7. "Consent", when referring to a consumer, means a clear
12 affirmative act signifying a consumer's freely given, specific,
13 informed, and unambiguous agreement to process personal data
14 relating to the consumer. The term includes, but is not limited to,
15 a written statement, including a statement written by electronic
16 means, or any other unambiguous affirmative action. The term does
17 not include:

- 18 a. acceptance of a general or broad terms of use or
19 similar document that contains descriptions of
20 personal data processing along with other, unrelated
21 information,
- 22 b. hovering over, muting, pausing, or closing a given
23 piece of content, or
- 24 c. agreement obtained through the use of dark patterns;

1 8. "Consumer" means an individual who is a resident of this
2 state acting only in an individual or household context. The term
3 does not include an individual acting in a commercial or employment
4 context;

5 9. "Controller" means an individual or other person that, alone
6 or jointly with others, determines the purpose and means of
7 processing personal data;

8 10. "Covered entity" has the meaning assigned to the term under
9 the Health Insurance Portability and Accountability Act of 1996, 42
10 U.S.C., Section 1320d et seq. or any regulation adopted thereunder;

11 11. "Dark pattern" means a user interface designed or
12 manipulated with the effect of substantially subverting or impairing
13 user autonomy, decision-making, or choice, and includes any practice
14 the Federal Trade Commission refers to as a dark pattern;

15 12. "Decision that produces a legal or similarly significant
16 effect concerning a consumer" means a decision made by the
17 controller that results in the provision or denial by the controller
18 of:

- 19 a. financial and lending services,
- 20 b. housing, insurance, or health care services,
- 21 c. education enrollment,
- 22 d. employment opportunities,
- 23 e. criminal justice, or
- 24 f. access to basic necessities such as food and water;

1 13. "De-identified data" means data that cannot reasonably be
2 linked to an identified or identifiable individual or a device
3 linked to the individual;

4 14. "Health care provider" has the meaning assigned to the term
5 under the Health Insurance Portability and Accountability Act of
6 1996, 42 U.S.C., Section 1320d et seq.;

7 15. "Health record" means any written, printed, or
8 electronically recorded material maintained by a health care
9 provider in the course of providing health care services to an
10 individual that concerns the individual and the services provided.

11 The term includes:

12 a. the substance of any communication made by an
13 individual to a health care provider in confidence
14 during or in connection with the provision of health
15 care services, or

16 b. information otherwise acquired by the health care
17 provider about an individual in confidence and in
18 connection with health care services provided to the
19 individual;

20 16. "Identified or identifiable individual" means a consumer
21 who can be readily identified, directly or indirectly;

22 17. "Institution of higher education" means:
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- a. a public institution that is a member of The Oklahoma State System of Higher Education or a technology center school district, or
- b. a private institution of higher education;

18. "Nonprofit organization" means:

- a. a corporation organized under Title 18 of the Oklahoma Statutes to the extent applicable to nonprofit corporations,
- b. an organization exempt from federal taxation under Section 501(a), Internal Revenue Code of 1986, as amended, by being listed as an exempt organization under Section 501(c)(3), 501(c)(6), or 501(c)(12) of that code,
- c. a political organization, or
- d. an organization that is:
 - (1) exempt from federal taxation under Section 501(a), Internal Revenue Code of 1986, as amended, by being listed as an exempt organization under Section 501(c)(4) of that code, and
 - (2) described by Section 363 of Title 36 of the Oklahoma Statutes, ~~or~~

1 ~~e. a subsidiary or affiliate of an entity regulated under~~
2 ~~Section 151 et seq. of Title 17 of the Oklahoma~~
3 ~~Statutes;~~

4 19. "Personal data" means any information including sensitive
5 data that is linked or reasonably linkable to an identified or
6 identifiable individual. The term includes pseudonymous data when
7 the data is used by a controller or processor in conjunction with
8 additional information that reasonably links the data to an
9 identified or identifiable individual. The term does not include
10 de-identified data or publicly available information;

11 20. "Political organization" means a party, committee,
12 association, fund, or other organization, regardless of whether
13 incorporated, that is organized and operated primarily for the
14 purpose of influencing or attempting to influence:

- 15 a. the selection, nomination, election, or appointment of
16 an individual to a federal, state, or local public
17 office or an office in a political organization,
18 regardless of whether the individual is selected,
19 nominated, elected, or appointed, or
20 b. the election of a presidential/vice-presidential
21 elector, regardless of whether the elector is
22 selected, nominated, elected, or appointed;

23 21. "Precise geolocation data" means information derived from
24 technology, including global positioning system level latitude and

1 longitude coordinates or other mechanisms, that directly identifies
2 the specific location of an individual with precision and accuracy
3 within a radius of one thousand seven hundred fifty (1,750) feet.

4 The term does not include the content of communications, nor does it
5 include any data generated by or connected to an advanced utility
6 metering infrastructure system or to equipment for use by a utility;

7 22. "Process" or "processing" means any operation or set of
8 operations performed, whether by manual or automated means, on
9 personal data or on sets of personal data, such as the collection,
10 use, storage, disclosure, analysis, deletion, or modification of
11 personal data;

12 23. "Processor" means a person who, or legal entity that,
13 processes personal data on behalf of a controller;

14 24. "Profiling" means any form of solely automated processing
15 performed on personal data to evaluate, analyze, or predict personal
16 aspects related to an identified or identifiable individual's
17 economic situation, health, personal preferences, interests,
18 reliability, behavior, location, or movements;

19 25. "Protected health information" has the meaning assigned to
20 the term under the Health Insurance Portability and Accountability
21 Act of 1996, 42 U.S.C., Section 1320d et seq. or any regulation
22 adopted thereunder;

23 26. "Pseudonymous data" means personal data that cannot be
24 attributed to a specific individual without the use of additional

1 information, provided that the additional information is kept
2 separately and is subject to appropriate technical and
3 organizational measures to ensure that the personal data is not
4 attributed to an identified or identifiable individual;

5 27. "Publicly available information" means information that is
6 lawfully made available through government records, or information
7 that a business has a reasonable basis to believe is lawfully made
8 available to the general public through widely distributed media, by
9 a consumer, or by a person to whom a consumer has disclosed the
10 information, unless the consumer has restricted the information to a
11 specific audience;

12 28. "Sale of personal data" means the exchange of personal data
13 for monetary consideration by the controller to a third party. The
14 term does not include the:

- 15 a. disclosure of personal data to a processor that
16 processes the personal data on the controller's
17 behalf,
- 18 b. disclosure of personal data to a third party for
19 purposes of providing a product or service requested
20 by the consumer,
- 21 c. disclosure or transfer of personal data to an
22 affiliate of the controller,
- 23 d. disclosure of information or personal data that the
24 consumer:

- 1 (1) (a) intentionally made available to the general
2 public through a mass media channel, and
3 (b) did not restrict to a specific audience, or
4 (2) directs the controller to disclose or
5 intentionally uses the controller to interact
6 with a third party, or
7 e. disclosure or transfer of personal data to a third
8 party as an asset that is part of a proposed or actual
9 merger, acquisition, bankruptcy, or other transaction
10 in which the third party assumes control of all or
11 part of the controller's assets;

12 29. "Sensitive data" means a category of personal data. The
13 term includes:

- 14 a. personal data revealing racial or ethnic origin,
15 religious beliefs, mental or physical health
16 diagnosis, sexual orientation, or citizenship or
17 immigration status,
18 b. genetic or biometric data that is processed for the
19 purpose of uniquely identifying an individual,
20 c. personal data collected from a known child, or
21 d. precise geolocation data;

22 30. "State agency" means a department, commission, board,
23 office, council, authority, or other agency in the executive branch
24 of state government that is created by the constitution or a statute

1 of this state, including a public university system or public
2 institution of higher education;

3 31. "Targeted advertising" means displaying to a consumer an
4 advertisement that is selected based on personal data obtained from
5 that consumer's activities over time and across nonaffiliated
6 websites or online applications to predict the consumer's
7 preferences or interests. The term does not include:

8 a. an advertisement that is:

9 (1) based on activities within a controller's own
10 websites or online applications,

11 (2) based on the context of a consumer's current
12 search query, visit to a website, or online
13 application, or

14 (3) directed to a consumer in response to the
15 consumer's request for information or feedback,
16 or

17 b. the processing of personal data solely for measuring
18 or reporting advertising performance, reach, or
19 frequency;

20 32. "Third party" means a person other than the consumer, the
21 controller, the processor, or an affiliate of the controller or
22 processor; and
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1 33. "Trade secret" means information including a formula,
2 pattern, compilation, program, device, method, technique, or
3 process, that:

4 a. derives independent economic value, actual or
5 potential, from not being generally known to, and not
6 being readily ascertainable by proper means by, other
7 persons who can obtain economic value from its
8 disclosure or use, and

9 b. is the subject of efforts that are reasonable under
10 the circumstances to maintain its secrecy.

11 SECTION 2. AMENDATORY Section 15 of Enrolled Senate Bill
12 No. 546 of the 2nd Session of the 60th Oklahoma Legislature, is
13 amended to read as follows:

14 A. The provisions of this act apply only to a controller or
15 processor who:

16 1. Conducts business in this state or produces a product or
17 service targeted to the residents of this state; and

18 2. During a calendar year, either:

19 a. controls or processes personal data of at least one
20 hundred thousand (100,000) consumers, or

21 b. controls or processes personal data of at least
22 twenty-five thousand (25,000) consumers and derives
23 over fifty percent (50%) of gross revenue from the
24 sale of personal data.

1 B. The provisions of this act shall not apply to:

2 1. A state agency or a political subdivision of this state, or
3 a service provider processing data on behalf of a state agency or
4 political subdivision of this state;

5 2. A financial institution or data subject to Title V of the
6 Gramm-Leach-Bliley Act, 15 U.S.C., Section 6801 et seq.;

7 3. A covered entity or business associate governed by the
8 privacy, security, and breach notification rules issued by the
9 United States Department of Health and Human Services, 45 C.F.R.,
10 Parts 160 and 164, established under the Health Insurance
11 Portability and Accountability Act of 1996, 42 U.S.C., Section 1320d
12 et seq., and the Health Information Technology for Economic and
13 Clinical Health Act, Division A of Title XIII and Division B of
14 Title IV of the American Recovery and Reinvestment Act of 2009, Pub.
15 L. No. 111-5;

16 4. A nonprofit organization;

17 5. An institution of higher education;

18 6. The processing of personal data by a person in the course of
19 a purely personal or household activity; ~~or~~

20 7. Personal data collected and used for purposes of the federal
21 policy under the Controlled Substances Act, Section on the
22 Regulation of Listed Chemicals under 21 U.S.C., Section 830, is
23 exempt; or

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8. An entity regulated under Section 151 et seq. of Title 17 of
the Oklahoma Statutes, and its parent, subsidiaries, and affiliates.

SECTION 3. This act shall become effective January 1, 2027.

60-2-17277 GRS 04/02/26